RECEIVED DOVER TOWN CLERK'S OFFICE
By Bonnie Franks at 11:50 am, Feb 07, 2023

Town of Dover Planning Board

Town of Dover
126 East Duncan Hill Road
Dover Plains, NY 12522

(845) 832-6111 ext. 100

RESOLUTION ADOPTING A SEQRA DETERMINATION OF SIGNIFICANCE (NEGATIVE DECLARATION)

TRANSCO SUBSTATION

WHEREAS, the applicant, New York Transco LLC, has submitted an application for site plan, special use permit and erosion and sediment control permit approval to construct an electric substation with transformers and appurtenant equipment (the "Project") on property located at 2238 Route 22, identified as tax parcel no. 7061-00-698172 (the "Property") in the CO Zoning District; and

WHEREAS, public utility facility uses are permitted in the CO Zoning District subject to site plan and special use permit approval; and

WHEREAS, the Project is depicted on a site plan entitled, "Dover Station," prepared by Power Engineers, dated June 22, 2021, last revised August 31, 2022, Sheets DVB-E0-101, BS-1, DVB-E1-101, DVB-E1-102, DVB-C1-101, DVB-C1-102, DVB-C1-103, DVB-C1-104, DVB-C1-112, DVB-C1-113, DVB-C1-114, DVB-C1-115, DVB-C1-120, DVB-E2-110, DVB-E2-111 and DVB-E7-101 (the "Site Plan Set"); and

WHEREAS, by letter dated November 10, 2021, the Town Building Inspector determined that certain features of the Project that exceeded dimensional limitations in the Town Zoning Law were permitted because such features were required by the 2014 NYS Uniform Fire Prevention and Building Code, including the requirement for a minimum of 9 ft fencing around the substations with one additional foot of barbed wire, and transmission poles and supports that exceed the Town's height limit of 35 feet; and

WHEREAS, the applicant has submitted a Full Environmental Assessment Form ("EAF") dated September 28, 2021, revised December 3, 2021, pursuant to the State Environmental Quality Review Act ("SEQRA"); and

WHEREAS, on October 18, 2021, the Planning Board classified the Project as an Unlisted Action under SEQRA and circulated its intent to serve as Lead Agency in a coordinated review of the Project, to which no other agency objected; and

WHEREAS, on October 30, 2021, members of the Planning Board conducted a site walk of the Property to review existing conditions of the Property and the adjoining areas; and

WHEREAS, the Project is located within 500 feet of New York State Route 22 and within the vicinity of an existing Con Edison Right of Way with existing utility towers; and

WHEREAS, the Project is located within or adjacent to the Great Swamp, a Critical Environmental Area ("CEA"), and the Planning Board has conducted its review with consideration of the potential impacts to the characteristics and qualities which warranted the area's designation as a CEA; and

WHEREAS, a duly noticed public hearing was opened on September 19, 2022 and continued through January 23, 2023 with written comments accepted through February 1, 2023, during which time the public has had the opportunity to testify and provide written comments for the Planning Board's consideration; and

WHEREAS, there is an extensive environmental record before the Planning Board, including reports prepared by the Applicant's consultants, the Board's consultants, and public testimony; and

WHEREAS, the Planning Board has considered the criteria contained in 6 NYCRR 617.7, Parts 2 and 3 of the EAF, and thoroughly analyzed all identified relevant areas of environmental concern, as set forth in the narrative accompanying Part 3 of the EAF.

NOW, THEREFORE, BE IT RESOLVED, that, for the reasons set forth in Parts 2 and 3 of the EAF and the extensive environmental record for the Project, which are incorporated herein, the Planning Board hereby issues a negative declaration, determining that the Project will not result in any significant adverse environmental impacts and that a Draft Environmental Impact Statement will not be prepared.

BE IT FURTHER RESOLVED, that the Secretary to the Planning Board is hereby directed to file a copy of the resolution with the Town Clerk, all interested and involved agencies, and any person who has requested a copy, and to make all other filings required by law.

Moved by: CHAIRMAN COURTIEN **Seconded by:** MEMBER SEDOR

Date: February 6, 2023

Ryan Courtien, Chair	AYE
Valerie LaRobardier	AYE
Tom Holmes	AYE
Tamar Roman	NAY
William Sedor	AYE
Michael Villano	AYE
Henry Williams	ABSENT

Agency Use Only [If applicable]

Project : NY Transco Substation 2238 Route 22

Date : February 6, 2023

Full Environmental Assessment Form
Part 2 - Identification of Potential Project Impacts

Part 2 is to be completed by the lead agency. Part 2 is designed to help the lead agency inventory all potential resources that could be affected by a proposed project or action. We recognize that the lead agency's reviewer(s) will not necessarily be environmental professionals. So, the questions are designed to walk a reviewer through the assessment process by providing a series of questions that can be answered using the information found in Part 1. To further assist the lead agency in completing Part 2, the form identifies the most relevant questions in Part 1 that will provide the information needed to answer the Part 2 question. When Part 2 is completed, the lead agency will have identified the relevant environmental areas that may be impacted by the proposed activity.

If the lead agency is a state agency **and** the action is in any Coastal Area, complete the Coastal Assessment Form before proceeding with this assessment.

Tips for completing Part 2:

- Review all of the information provided in Part 1.
- Review any application, maps, supporting materials and the Full EAF Workbook.
- Answer each of the 18 questions in Part 2.
- If you answer "**Yes**" to a numbered question, please complete all the questions that follow in that section.
- If you answer "**No**" to a numbered question, move on to the next numbered question.
- Check appropriate column to indicate the anticipated size of the impact.
- Proposed projects that would exceed a numeric threshold contained in a question should result in the reviewing agency checking the box "Moderate to large impact may occur."
- The reviewer is not expected to be an expert in environmental analysis.
- If you are not sure or undecided about the size of an impact, it may help to review the sub-questions for the general question and consult the workbook.
- When answering a question consider all components of the proposed activity, that is, the "whole action".
- Consider the possibility for long-term and cumulative impacts as well as direct impacts.
- Answer the question in a reasonable manner considering the scale and context of the project.

1. Impact on Land
Proposed action may involve construction on, or physical alteration of, the land surface of the proposed site. (See Part 1. D.1)
If "Yes", answer questions a - j. If "No", move on to Section 2.

☐ NO ☑ YES

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. The proposed action may involve construction on land where depth to water table is less than 3 feet.	E2d	☑	☐
b. The proposed action may involve construction on slopes of 15% or greater.	E2f	☑	☐
c. The proposed action may involve construction on land where bedrock is exposed, or generally within 5 feet of existing ground surface.	E2a	☑	☐
d. The proposed action may involve the excavation and removal of more than 1,000 tons of natural material.	D2a	☑	☐
e. The proposed action may involve construction that continues for more than one year or in multiple phases.	D1e	☑	☐
f. The proposed action may result in increased erosion, whether from physical disturbance or vegetation removal (including from treatment by herbicides).	D2e, D2q	☑	☐
g. The proposed action is, or may be, located within a Coastal Erosion hazard area.	B1i	☑	☐
h. Other impacts: _____		☐	☐

2. Impact on Geological Features

The proposed action may result in the modification or destruction of, or inhibit access to, any unique or unusual land forms on the site (e.g., cliffs, dunes, minerals, fossils, caves). (See Part 1. E.2.g) ☑ NO ☐ YES

If "Yes", answer questions a - c. If "No", move on to Section 3.

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. Identify the specific land form(s) attached: _____ _____	E2g	☐	☐
b. The proposed action may affect or is adjacent to a geological feature listed as a registered National Natural Landmark. Specific feature: _____	E3c	☐	☐
c. Other impacts: _____ _____		☐	☐

3. Impacts on Surface Water

The proposed action may affect one or more wetlands or other surface water bodies (e.g., streams, rivers, ponds or lakes). (See Part 1. D.2, E.2.h) ☐ NO ☑ YES

If "Yes", answer questions a - l. If "No", move on to Section 4.

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. The proposed action may create a new water body.	D2b, D1h	☑	☐
b. The proposed action may result in an increase or decrease of over 10% or more than a 10 acre increase or decrease in the surface area of any body of water.	D2b	☑	☐
c. The proposed action may involve dredging more than 100 cubic yards of material from a wetland or water body.	D2a	☑	☐
d. The proposed action may involve construction within or adjoining a freshwater or tidal wetland, or in the bed or banks of any other water body.	E2h	☑	☐
e. The proposed action may create turbidity in a waterbody, either from upland erosion, runoff or by disturbing bottom sediments.	D2a, D2h	☑	☐
f. The proposed action may include construction of one or more intake(s) for withdrawal of water from surface water.	D2c	☑	☐
g. The proposed action may include construction of one or more outfall(s) for discharge of wastewater to surface water(s).	D2d	☑	☐
h. The proposed action may cause soil erosion, or otherwise create a source of stormwater discharge that may lead to siltation or other degradation of receiving water bodies.	D2e	☑	☐
i. The proposed action may affect the water quality of any water bodies within or downstream of the site of the proposed action.	E2h	☑	☐
j. The proposed action may involve the application of pesticides or herbicides in or around any water body.	D2q, E2h	☑	☐
k. The proposed action may require the construction of new, or expansion of existing, wastewater treatment facilities.	D1a, D2d	☑	☐

l. Other impacts: _____ _____		☐	☐

4. Impact on groundwater
The proposed action may result in new or additional use of ground water, or may have the potential to introduce contaminants to ground water or an aquifer. (See Part 1. D.2.a, D.2.c, D.2.d, D.2.p, D.2.q, D.2.t)
☐NO ☑YES
If "Yes", answer questions a - h. If "No", move on to Section 5.

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. The proposed action may require new water supply wells, or create additional demand on supplies from existing water supply wells.	D2c	☑	☐
b. Water supply demand from the proposed action may exceed safe and sustainable withdrawal capacity rate of the local supply or aquifer. Cite Source: _____	D2c	☑	☐
c. The proposed action may allow or result in residential uses in areas without water and sewer services.	D1a, D2c	☑	☐
d. The proposed action may include or require wastewater discharged to groundwater.	D2d, E2l	☑	☐
e. The proposed action may result in the construction of water supply wells in locations where groundwater is, or is suspected to be, contaminated.	D2c, E1f, E1g, E1h	☑	☐
f. The proposed action may require the bulk storage of petroleum or chemical products over ground water or an aquifer.	D2p, E2l	☑	☐
g. The proposed action may involve the commercial application of pesticides within 100 feet of potable drinking water or irrigation sources.	E2h, D2q, E2l, D2c	☑	☐
h. Other impacts: _____ _____		☑	☐

5. Impact on Flooding
The proposed action may result in development on lands subject to flooding. (See Part 1. E.2)
☑NO ☐YES
If "Yes", answer questions a - g. If "No", move on to Section 6.

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. The proposed action may result in development in a designated floodway.	E2i	☐	☐
b. The proposed action may result in development within a 100 year floodplain.	E2j	☐	☐
c. The proposed action may result in development within a 500 year floodplain.	E2k	☐	☐
d. The proposed action may result in, or require, modification of existing drainage patterns.	D2b, D2e	☐	☐
e. The proposed action may change flood water flows that contribute to flooding.	D2b, E2i, E2j, E2k	☐	☐
f. If there is a dam located on the site of the proposed action, is the dam in need of repair, or upgrade?	E1e	☐	☐

g. Other impacts: _____ _____		☐	☐

6. Impacts on Air

The proposed action may include a state regulated air emission source. (See Part 1. D.2.f., D.2.h, D.2.g) ☑NO ☐YES

If "Yes", answer questions a - f. If "No", move on to Section 7.

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. If the proposed action requires federal or state air emission permits, the action may also emit one or more greenhouse gases at or above the following levels:			
i. More than 1000 tons/year of carbon dioxide (CO_2)	D2g	☐	☐
ii. More than 3.5 tons/year of nitrous oxide (N_2O)	D2g	☐	☐
iii. More than 1000 tons/year of carbon equivalent of perfluorocarbons (PFCs)	D2g	☐	☐
iv. More than .045 tons/year of sulfur hexafluoride (SF_6)	D2g	☐	☐
v. More than 1000 tons/year of carbon dioxide equivalent of hydrochloroflourocarbons (HFCs) emissions	D2g	☐	☐
vi. 43 tons/year or more of methane	D2h	☐	☐
b. The proposed action may generate 10 tons/year or more of any one designated hazardous air pollutant, or 25 tons/year or more of any combination of such hazardous air pollutants.	D2g	☐	☐
c. The proposed action may require a state air registration, or may produce an emissions rate of total contaminants that may exceed 5 lbs. per hour, or may include a heat source capable of producing more than 10 million BTU's per hour.	D2f, D2g	☐	☐
d. The proposed action may reach 50% of any of the thresholds in "a" through "c", above.	D2g	☐	☐
e. The proposed action may result in the combustion or thermal treatment of more than 1 ton of refuse per hour.	D2s	☐	☐
f. Other impacts: _____ _____		☐	☐

7. Impact on Plants and Animals

The proposed action may result in a loss of flora or fauna. (See Part 1. E.2. m.-q.) ☐NO ☑YES

If "Yes", answer questions a - j. If "No", move on to Section 8.

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. The proposed action may cause reduction in population or loss of individuals of any threatened or endangered species, as listed by New York State or the Federal government, that use the site, or are found on, over, or near the site.	E2o	☑	☐
b. The proposed action may result in a reduction or degradation of any habitat used by any rare, threatened or endangered species, as listed by New York State or the federal government.	E2o	☑	☐
c. The proposed action may cause reduction in population, or loss of individuals, of any species of special concern or conservation need, as listed by New York State or the Federal government, that use the site, or are found on, over, or near the site.	E2p	☑	☐
d. The proposed action may result in a reduction or degradation of any habitat used by any species of special concern and conservation need, as listed by New York State or the Federal government.	E2p	☑	☐

e. The proposed action may diminish the capacity of a registered National Natural Landmark to support the biological community it was established to protect.	E3c	☑	☐
f. The proposed action may result in the removal of, or ground disturbance in, any portion of a designated significant natural community. Source: _____	E2n	☑	☐
g. The proposed action may substantially interfere with nesting/breeding, foraging, or over-wintering habitat for the predominant species that occupy or use the project site.	E2m	☑	☐
h. The proposed action requires the conversion of more than 10 acres of forest, grassland or any other regionally or locally important habitat. Habitat type & information source: _____ _____	E1b	☑	☐
i. Proposed action (commercial, industrial or recreational projects, only) involves use of herbicides or pesticides.	D2q	☑	☐
j. Other impacts: _____ _____		☐	☐

8. Impact on Agricultural Resources
The proposed action may impact agricultural resources. (See Part 1. E.3.a. and b.) ☑NO ☐YES
If "Yes", answer questions a - h. If "No", move on to Section 9.

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. The proposed action may impact soil classified within soil group 1 through 4 of the NYS Land Classification System.	E2c, E3b	☐	☐
b. The proposed action may sever, cross or otherwise limit access to agricultural land (includes cropland, hayfields, pasture, vineyard, orchard, etc).	E1a, E1b	☐	☐
c. The proposed action may result in the excavation or compaction of the soil profile of active agricultural land.	E3b	☐	☐
d. The proposed action may irreversibly convert agricultural land to non-agricultural uses, either more than 2.5 acres if located in an Agricultural District, or more than 10 acres if not within an Agricultural District.	E1b, E3a	☐	☐
e. The proposed action may disrupt or prevent installation of an agricultural land management system.	E1 a, E1b	☐	☐
f. The proposed action may result, directly or indirectly, in increased development potential or pressure on farmland.	C2c, C3, D2c, D2d	☐	☐
g. The proposed project is not consistent with the adopted municipal Farmland Protection Plan.	C2c	☐	☐
h. Other impacts: _____		☐	☐

9. Impact on Aesthetic Resources

The land use of the proposed action are obviously different from, or are in sharp contrast to, current land use patterns between the proposed project and a scenic or aesthetic resource. (Part 1. E.1.a, E.1.b, E.3.h.)

☐ NO ☑ YES

If "Yes", answer questions a - g. If "No", go to Section 10.

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. Proposed action may be visible from any officially designated federal, state, or local scenic or aesthetic resource.	E3h	☑	☐
b. The proposed action may result in the obstruction, elimination or significant screening of one or more officially designated scenic views.	E3h, C2b	☑	☐
c. The proposed action may be visible from publicly accessible vantage points: i. Seasonally (e.g., screened by summer foliage, but visible during other seasons) ii. Year round	E3h	☑ ☑	☐ ☐
d. The situation or activity in which viewers are engaged while viewing the proposed action is: i. Routine travel by residents, including travel to and from work ii. Recreational or tourism based activities	E3h E2q, E1c	☑ ☑	☐ ☐
e. The proposed action may cause a diminishment of the public enjoyment and appreciation of the designated aesthetic resource.	E3h	☑	☐
f. There are similar projects visible within the following distance of the proposed project: 0-1/2 mile ½ -3 mile 3-5 mile 5+ mile	D1a, E1a, D1f, D1g	☑	☐
g. Other impacts: _____		☐	☐

10. Impact on Historic and Archeological Resources

The proposed action may occur in or adjacent to a historic or archaeological resource. (Part 1. E.3.e, f. and g.)

☐ NO ☑ YES

If "Yes", answer questions a - e. If "No", go to Section 11.

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. The proposed action may occur wholly or partially within, or substantially contiguous to, any buildings, archaeological site or district which is listed on the National or State Register of Historical Places, or that has been determined by the Commissioner of the NYS Office of Parks, Recreation and Historic Preservation to be eligible for listing on the State Register of Historic Places.	E3e	☑	☐
b. The proposed action may occur wholly or partially within, or substantially contiguous to, an area designated as sensitive for archaeological sites on the NY State Historic Preservation Office (SHPO) archaeological site inventory.	E3f	☑	☐
c. The proposed action may occur wholly or partially within, or substantially contiguous to, an archaeological site not included on the NY SHPO inventory. Source: _____	E3g	☑	☐

d. Other impacts: _____ _____		☐	☐
e. If any of the above (a-d) are answered "Moderate to large impact may occur", continue with the following questions to help support conclusions in Part 3:			
i. The proposed action may result in the destruction or alteration of all or part of the site or property.	E3e, E3g, E3f	☐	☐
ii. The proposed action may result in the alteration of the property's setting or integrity.	E3e, E3f, E3g, E1a, E1b	☐	☐
iii. The proposed action may result in the introduction of visual elements which are out of character with the site or property, or may alter its setting.	E3e, E3f, E3g, E3h, C2, C3	☐	☐

11. Impact on Open Space and Recreation

The proposed action may result in a loss of recreational opportunities or a reduction of an open space resource as designated in any adopted municipal open space plan.
(See Part 1. C.2.c, E.1.c., E.2.q.)
If "Yes", answer questions a - e. If "No", go to Section 12.

☑ NO ☐ YES

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. The proposed action may result in an impairment of natural functions, or "ecosystem services", provided by an undeveloped area, including but not limited to stormwater storage, nutrient cycling, wildlife habitat.	D2e, E1b E2h, E2m, E2o, E2n, E2p	☐	☐
b. The proposed action may result in the loss of a current or future recreational resource.	C2a, E1c, C2c, E2q	☐	☐
c. The proposed action may eliminate open space or recreational resource in an area with few such resources.	C2a, C2c E1c, E2q	☐	☐
d. The proposed action may result in loss of an area now used informally by the community as an open space resource.	C2c, E1c	☐	☐
e. Other impacts: _____ _____		☐	☐

12. Impact on Critical Environmental Areas

The proposed action may be located within or adjacent to a critical environmental area (CEA). (See Part 1. E.3.d)
If "Yes", answer questions a - c. If "No", go to Section 13.

☐ NO ☑ YES

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. The proposed action may result in a reduction in the quantity of the resource or characteristic which was the basis for designation of the CEA.	E3d	☑	☐
b. The proposed action may result in a reduction in the quality of the resource or characteristic which was the basis for designation of the CEA.	E3d	☑	☐
c. Other impacts: _____ _____		☐	☐

13. Impact on Transportation
The proposed action may result in a change to existing transportation systems. ☑ NO ☐ YES
(See Part 1. D.2.j)
If "Yes", answer questions a - f. If "No", go to Section 14.

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. Projected traffic increase may exceed capacity of existing road network.	D2j	☐	☐
b. The proposed action may result in the construction of paved parking area for 500 or more vehicles.	D2j	☐	☐
c. The proposed action will degrade existing transit access.	D2j	☐	☐
d. The proposed action will degrade existing pedestrian or bicycle accommodations.	D2j	☐	☐
e. The proposed action may alter the present pattern of movement of people or goods.	D2j	☐	☐
f. Other impacts: _____		☐	☐

14. Impact on Energy
The proposed action may cause an increase in the use of any form of energy. ☐ NO ☑ YES
(See Part 1. D.2.k)
If "Yes", answer questions a - e. If "No", go to Section 15.

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. The proposed action will require a new, or an upgrade to an existing, substation.	D2k	☑	☐
b. The proposed action will require the creation or extension of an energy transmission or supply system to serve more than 50 single or two-family residences or to serve a commercial or industrial use.	D1f, D1q, D2k	☑	☐
c. The proposed action may utilize more than 2,500 MWhrs per year of electricity.	D2k	☑	☐
d. The proposed action may involve heating and/or cooling of more than 100,000 square feet of building area when completed.	D1g	☑	☐
e. Other Impacts: _____		☐	☐

15. Impact on Noise, Odor, and Light
The proposed action may result in an increase in noise, odors, or outdoor lighting. ☐ NO ☑ YES
(See Part 1. D.2.m., n., and o.)
If "Yes", answer questions a - f. If "No", go to Section 16.

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. The proposed action may produce sound above noise levels established by local regulation.	D2m	☑	☐
b. The proposed action may result in blasting within 1,500 feet of any residence, hospital, school, licensed day care center, or nursing home.	D2m, E1d	☐	☑
c. The proposed action may result in routine odors for more than one hour per day.	D2o	☑	☐

d. The proposed action may result in light shining onto adjoining properties.	D2n	☑	☐
e. The proposed action may result in lighting creating sky-glow brighter than existing area conditions.	D2n, E1a	☑	☐
f. Other impacts: _____ _____		☐	☐

16. Impact on Human Health
The proposed action may have an impact on human health from exposure to new or existing sources of contaminants. (See Part 1.D.2.q., E.1. d. f. g. and h.) ☐ NO ☑ YES
If "Yes", answer questions a - m. If "No", go to Section 17.

	Relevant Part I Question(s)	No,or small impact may occur	Moderate to large impact may occur
a. The proposed action is located within 1500 feet of a school, hospital, licensed day care center, group home, nursing home or retirement community.	E1d	☑	☐
b. The site of the proposed action is currently undergoing remediation.	E1g, E1h	☑	☐
c. There is a completed emergency spill remediation, or a completed environmental site remediation on, or adjacent to, the site of the proposed action.	E1g, E1h	☑	☐
d. The site of the action is subject to an institutional control limiting the use of the property (e.g., easement or deed restriction).	E1g, E1h	☑	☐
e. The proposed action may affect institutional control measures that were put in place to ensure that the site remains protective of the environment and human health.	E1g, E1h	☑	☐
f. The proposed action has adequate control measures in place to ensure that future generation, treatment and/or disposal of hazardous wastes will be protective of the environment and human health.	D2t	☑	☐
g. The proposed action involves construction or modification of a solid waste management facility.	D2q, E1f	☑	☐
h. The proposed action may result in the unearthing of solid or hazardous waste.	D2q, E1f	☑	☐
i. The proposed action may result in an increase in the rate of disposal, or processing, of solid waste.	D2r, D2s	☑	☐
j. The proposed action may result in excavation or other disturbance within 2000 feet of a site used for the disposal of solid or hazardous waste.	E1f, E1g E1h	☑	☐
k. The proposed action may result in the migration of explosive gases from a landfill site to adjacent off site structures.	E1f, E1g	☑	☐
l. The proposed action may result in the release of contaminated leachate from the project site.	D2s, E1f, D2r	☑	☐
m. Other impacts: _____ _____		☐	☐

17. Consistency with Community Plans

The proposed action is not consistent with adopted land use plans. (See Part 1. C.1, C.2. and C.3.) ☑ NO ☐ YES

If "Yes", answer questions a - h. If "No", go to Section 18.

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. The proposed action's land use components may be different from, or in sharp contrast to, current surrounding land use pattern(s).	C2, C3, D1a E1a, E1b	☐	☐
b. The proposed action will cause the permanent population of the city, town or village in which the project is located to grow by more than 5%.	C2	☐	☐
c. The proposed action is inconsistent with local land use plans or zoning regulations.	C2, C2, C3	☐	☐
d. The proposed action is inconsistent with any County plans, or other regional land use plans.	C2, C2	☐	☐
e. The proposed action may cause a change in the density of development that is not supported by existing infrastructure or is distant from existing infrastructure.	C3, D1c, D1d, D1f, D1d, Elb	☐	☐
f. The proposed action is located in an area characterized by low density development that will require new or expanded public infrastructure.	C4, D2c, D2d D2j	☐	☐
g. The proposed action may induce secondary development impacts (e.g., residential or commercial development not included in the proposed action)	C2a	☐	☐
h. Other: _____ _____		☐	☐

18. Consistency with Community Character

The proposed project is inconsistent with the existing community character. (See Part 1. C.2, C.3, D.2, E.3) ☐ NO ☑ YES

If "Yes", answer questions a - g. If "No", proceed to Part 3.

	Relevant Part I Question(s)	No, or small impact may occur	Moderate to large impact may occur
a. The proposed action may replace or eliminate existing facilities, structures, or areas of historic importance to the community.	E3e, E3f, E3g	☑	☐
b. The proposed action may create a demand for additional community services (e.g. schools, police and fire)	C4	☑	☐
c. The proposed action may displace affordable or low-income housing in an area where there is a shortage of such housing.	C2, C3, D1f D1g, E1a	☑	☐
d. The proposed action may interfere with the use or enjoyment of officially recognized or designated public resources.	C2, E3	☑	☐
e. The proposed action is inconsistent with the predominant architectural scale and character.	C2, C3	☑	☐
f. Proposed action is inconsistent with the character of the existing natural landscape.	C2, C3 E1a, E1b E2g, E2h	☑	☐
g. Other impacts: _____ _____		☑	☐

PRINT FULL FORM

Agency Use Only [IfApplicable]

Project : NY Transco Dover Substation - 2238 Route 22

Date : February 6, 2023

Full Environmental Assessment Form
Part 3 - Evaluation of the Magnitude and Importance of Project Impacts
and
Determination of Significance

Part 3 provides the reasons in support of the determination of significance. The lead agency must complete Part 3 for every question in Part 2 where the impact has been identified as potentially moderate to large or where there is a need to explain why a particular element of the proposed action will not, or may, result in a significant adverse environmental impact.

Based on the analysis in Part 3, the lead agency must decide whether to require an environmental impact statement to further assess the proposed action or whether available information is sufficient for the lead agency to conclude that the proposed action will not have a significant adverse environmental impact. By completing the certification on the next page, the lead agency can complete its determination of significance.

Reasons Supporting This Determination:

To complete this section:

- Identify the impact based on the Part 2 responses and describe its magnitude. Magnitude considers factors such as severity, size or extent of an impact.
- Assess the importance of the impact. Importance relates to the geographic scope, duration, probability of the impact occurring, number of people affected by the impact and any additional environmental consequences if the impact were to occur.
- The assessment should take into consideration any design element or project changes.
- Repeat this process for each Part 2 question where the impact has been identified as potentially moderate to large or where there is a need to explain why a particular element of the proposed action will not, or may, result in a significant adverse environmental impact.
- Provide the reason(s) why the impact may, or will not, result in a significant adverse environmental impact
- For Conditional Negative Declarations identify the specific condition(s) imposed that will modify the proposed action so that no significant adverse environmental impacts will result.
- Attach additional sheets, as needed.

Refer to Separate Negative Declaration document dated February 6, 2023.

Determination of Significance - Type 1 and Unlisted Actions

SEQR Status: ☐ Type 1 ☑ Unlisted

Identify portions of EAF completed for this Project: ☑ Part 1 ☑ Part 2 ☑ Part 3

Upon review of the information recorded on this EAF, as noted, plus this additional support information

Visual Impact Assessment (TRC, 9/1/21 rev 4/28/22 and 12/2/21); Sound Level Impact Assessment and Testing Protocols (Epsilon, 7/28/22); Soil and Groundwater Testing (TRC, 7/28/22); Blasting and Hydrogeology Memo (Terracon, 4/7/22); U.S. Army Corps. of Engineers No Permit Required Letter (3/3/22); NYSDEC validated wetland map (10/28/21); NYSDEC and USFWS correspondence on wetlands and T&E species (7/15/22, 12/27/22); OPRHP archaeological and architectural review letters (8/13/21, 11/23/21, 5/31/22); TRC EJ Reponse Memo (11/4/2022); NYSDEC email on PEJA (12/16/22)

and considering both the magnitude and importance of each identified potential impact, it is the conclusion of the Town of Dover Planning Board as lead agency that:

☑ A. This project will result in no significant adverse impacts on the environment, and, therefore, an environmental impact statement need not be prepared. Accordingly, this negative declaration is issued.

☐ B. Although this project could have a significant adverse impact on the environment, that impact will be avoided or substantially mitigated because of the following conditions which will be required by the lead agency:

There will, therefore, be no significant adverse impacts from the project as conditioned, and, therefore, this conditioned negative declaration is issued. A conditioned negative declaration may be used only for UNLISTED actions (see 6 NYCRR 617.7(d)).

☐ C. This Project may result in one or more significant adverse impacts on the environment, and an environmental impact statement must be prepared to further assess the impact(s) and possible mitigation and to explore alternatives to avoid or reduce those impacts. Accordingly, this positive declaration is issued.

Name of Action: NY Transco Dover Substation - 2238 Route 22

Name of Lead Agency: Town of Dover Planning Board

Name of Responsible Officer in Lead Agency: Ryan Courtien

Title of Responsible Officer: Planning Board Chair

Signature of Responsible Officer in Lead Agency: Date: 2/6/23

Signature of Preparer (if different from Responsible Officer) Date: 2/6/23

For Further Information:

Contact Person: Ryan Courtien, Planning Board Chair, Town of Dover Planning Board

Address: 126 East Duncan Hill Road, Dover Plains, NY

Telephone Number: (845)832-6111

E-mail: rcourtien@doverny.us

For Type 1 Actions and Conditioned Negative Declarations, a copy of this Notice is sent to:

Chief Executive Officer of the political subdivision in which the action will be principally located (e.g., Town / City / Village of)
Other involved agencies (if any)
Applicant (if any)
Environmental Notice Bulletin: http://www.dec.ny.gov/enb/enb.html

PRINT FULL FORM

State Environmental Quality Review
Notice of Determination of Significance

NEGATIVE DECLARATION

Date: February 6, 2023

This notice is issued pursuant to Part 617 of the implementing regulations pertaining to Article 8 (State Environmental Quality Review Act - SEQRA) of the Environmental Conservation Law.

The Town of Dover Planning Board as Lead Agency has determined that the proposed action described below will not have a significant environmental impact and a Draft Impact Statement will not be prepared.

Name of Action: NY Transco Dover Substation – 2238 Route 22

Location: 2238 Route 22, Town of Dover, Dutchess County, NY

SEQR Action Classification: Type 1 _

Unlisted X

Conditioned Negative Declaration: ☐ Yes
☒ No

Description of Action:

The Applicant, New York Transco LLC, is seeking site plan, special permit, and erosion and sediment control (ESC) permit approval from the Town of Dover Planning Board to facilitate construction of a new electric substation (the "Project") proposed at 2238 Route 22 (tax parcel 132600-7061-00-698172), at the southeast corner of NYS Route 22 and Cricket Hill Road (aka County Route 26) (the "Site").

The 16.3-acre Site is located within the Town's CO (Commercial/Industry/Office Mixed-Use) zoning district and contains an existing building used for office and warehouse space, parking areas, an access drive via curb cut off Route 22, and perimeter fencing with barbed wire that ranges from 7 to 8 feet in height. The Site also contains three existing access points with gates on Route 22 and Cricket Hill Road that will be eliminated and fully landscaped as part of the proposal. The Site was previously used as an automobile junkyard, a building material storage yard, and the office and maintenance facility for Cablevision (Optimum). Existing electric power generation, transmission and distribution uses are located in the area surrounding the Site. These uses include the Consolidated Edison of New York (Con Ed) 345 kV transmission line corridor (known as Line 398), Con Ed Right of Way (ROW) and Dover Solar Farm facility to the north, and the Cricket Valley Energy Center to the west. The Iroquois Gas Transmission pipeline is also located adjacent to the Con Ed ROW in proximity to the Site.

The Project is an electric substation that would be an unoccupied public utility facility monitored remotely for safety and security. The substation will be used to control the flow of energy on the existing transmission system and will include transformers, lightning masts, control unit, and transmission line poles within a fenced area on the Site. The Project will interconnect with the existing transmission system via new overhead 345 kV lines tying into the Con Ed Line 398, which is an existing 345 kV electric transmission line located immediately north of the Project Site and Cricket Hill Road (aka County Route 26). The proposed interconnection is subject to an existing Certificate of Environmental Compatibility and Public Need (CECPN) issued by the New York State Public Service Commission (PSC). Upgrades within the ROW to Line 398 are subject to the review jurisdiction of the PSC pursuant to the New York State Public Service Law Article VII and not the Town of Dover. The ROW upgrades are similarly excluded from review under SEQRA. Nonetheless, the Line 398 ROW upgrades have been reviewed by agencies consulted during the Town's review under SEQRA, including the U.S. Army Corps of Engineers, NYS Office of Parks, Recreation, and Historic Preservation, NYS Dept. of Environmental Conservation, and the U.S. Fish and Wildlife Service. As discussed further below, these agencies have identified no adverse

impacts or corresponding agency permits in connection with the work proposed for Line 398 as part of the Project.

The Project is proposed on approximately 8.4 acres of the 16.3-acre Site. The fenced substation area will surround approximately 5 acres. All equipment, including transformers, lightning masts, and transmission line poles will be located within the fenced area. All equipment is proposed outside of setback areas and more than 150 feet from the centerlines of Route 22 and Cricket Hill Road. Existing 7 and 8-foot-tall fencing will be removed in areas along the property lines, and new 9-foot fencing will be installed approximately 100 feet further into the Site. A single permanent access driveway is proposed from Route 22, approximately 733 feet south of Cricket Hill Road. Temporary access for construction is proposed from the existing gated access points found along Route 22 and Cricket Hill Road. Landscaped buffers are proposed along the Route 22 and Cricket Hill Road frontages. The existing office would continue to serve as an office for visiting site inspectors, and its façade improved with landscaping.

The Project does not propose financial assistance from an Industrial Development Agency, such as a Payment in Lieu of Taxes, and the impacts of any such assistance have not been evaluated as part of this SEQRA review.

Reasons Supporting This Determination:

The Planning Board has reviewed several supplemental studies/reports and agency correspondence in connection with this determination, including but not limited to the following:

- Wetland and Stream Delineation Report prepared by TRC dated September 2021.
- Letter from the Town of Dover Building Inspector regarding proposed equipment and Town Code requirements dated November 10, 2021.
- Visual Impact Assessment prepared by TRC dated September 2021, revised December 2, 2021 and April 28, 2022.
- Sound Level Impact Assessment Report prepared by Epsilon dated September 2021, revised December 1, 2021, revised April 28, 2022, and revised July 28, 2022
- Sound Level Testing Protocols prepared by Epsilon dated August 10, 2022.
- Undated Letter from Friends of the Great Swamp received on December 19, 2021
- Soil and Groundwater Testing (Environmental Conditions) letter from TRC dated July 28, 2022.
- Blasting and Hydrogeology Memo prepared by Terracon dated April 27, 2022.
- U.S. Army Corps. of Engineers (USACE) "No Permit Required" letter dated March 2, 2022.
- New York State Dept. of Environmental Conservation (NYSDEC) validated wetland map dated October 28, 2021.
- NYSDEC correspondence on wetlands and threatened/endangered species dated July 15, 2022.
- U.S. Fish and Wildlife Service (USFWS) correspondence on wetlands and threatened/endangered species dated December 27, 2022 and January 24, 2023.
- New York State Office of Parks, Recreation, and Historic Preservation (OPRHP) archaeological and architectural review letters dated August 13, 2021, November 23, 2021 and May 31, 2022.
- Environmental Justice Response Memorandum prepared by TRC dated November 4, 2022.
- NYSDEC correspondence on Potential Environmental Justice Areas (PEJA) dated December 16, 2022.
- Hudsonia Preliminary Biodiversity Assessment dated January 18, 2023.
- TRC Response to Comment Letter dated February 1, 2023.
- Terracon Response to Comment Letter dated February 1, 2023.

The Project will not result in any significant impacts from "a substantial adverse change in existing air quality, ground or surface water quality or quantity, traffic or noise levels; a substantial increase in solid waste production; a substantial increase in potential for erosion, flooding, leaching or drainage problems;" (§617.7(c)(1)(i)):

The Project is a substation and not an electric generating facility, and therefore will not result in any impacts related to air emissions. The Project will not utilize groundwater and will not produce wastewater or solid waste.

Two wetlands (AW1B and AW2B) identified on the Site are under the jurisdiction of the New York State Department of Environmental Conservation (NYSDEC). These wetlands are hydrologically connected to NYSDEC wetland DP-22, located approximately 860 feet south of the Site boundary. No project-related disturbance is proposed within NYSDEC jurisdictional wetlands AW1B and AW2B, 100-foot wetland adjacent areas, or waterbodies. After visiting the Site NYSDEC validated the Applicant's wetland delineation map on October 28, 2021 (valid until October 28, 2026). The remaining two on-site wetlands (AW3B and AW4B) are small, isolated depressions totaling 0.04 acres with no inlet or outlet. Wetlands AW3B and AW4B are not mapped by NYSDEC and are proposed to be filled as part of the Project's construction. The filling of these isolated wetlands is not considered a significant impact, and in a letter dated March 3, 2022 the Army Corps of Engineers (USACE) confirmed them to be non-jurisdictional wetlands because they are not connected to Waters of the United States. The Applicant also obtained, after several rounds of coordination with NYSDEC, a written approval to remove debris in specific locations outside of the planned area of disturbance, in the 100-foot adjacent area (aka buffer) around NYSDEC-validated Wetland AW1B, in a manner that would avoid any adverse impacts to the wetland. The Planning Board will require this debris removal. The debris the Applicant will be required to remove from these areas consists mostly of old tires and metal scraps. NYSDEC confirmed in writing on March 2, 2022 that removing the debris identified in the locations on the submitted map and in the manner described should avoid adverse impacts to the wetland and will not require any permit from NYSDEC.

The Project will be unoccupied and remotely operated, and as a result will not generate traffic, other than temporary traffic during construction.

The Applicant provided a noise impact assessment (completed by Epsilon Associates, July 2022) including the measurement of existing sound levels and computer modeling to predict sound levels from the Project. The noise assessment evaluated the Project against NYSDEC noise policy guidelines and standards found within the Town of Dover Code. The conservatively modeled sound levels at the Site property line are predicted to be well below the Town of Dover daytime and nighttime sound level limits of 60 dBA and 50 dBA, respectively. In coordination with the Town Engineer, the Applicant has committed to conduct sound testing on the Site after completion of construction during the commissioning stage of the Project. Sound test measurement locations shall include the four (4) receptor locations at the Site property lines that are identified in the Epsilon report. The Town Engineer may require the Applicant to include in the Test no more than four (4) additional measurement locations at the Site property lines. If non-compliance with the Town Code is observed, the Applicant shall coordinate with the Town Engineer to evaluate potential corrective measures. With these protocols in place as part of Project, no significant adverse noise impacts are anticipated.

Blasting of bedrock on a limited extent of the Site will occur within 1,500 feet of a residence and a Critical Environmental Area (The Great Swamp). Blasting will be temporary and is expected to occur at a point within the site preparation phase of the Project's construction, a phase that in total will last approximately four months. All blasting will be in accordance with Town Building Code requirements (Town Code Chapter 69) and will require a permit from the Town. Additional information on blasting is provided below under the discussion of Critical Environmental Areas.

The Applicant has prepared a Stormwater Pollution Prevention Plan (SWPPP) and Erosion and Sediment Control (ESC) Plan to the satisfaction of the Town Engineer. The SWPPP shows that the Project will result in a reduction in peak stormwater runoff rate for each drainage area for all design storms. Erosion and sediment control measures will be implemented in accordance with GP-0-20-001 and Chapter 65 of the Town Code. With these measures in place as part of the Project no significant impacts to any regulated wetlands or streams on or off-site are anticipated.

The Site is not located within or near a 100-year or 500-year floodplain.

The Project will not result in any significant impacts from "the removal or destruction of large quantities of vegetation or fauna; substantial interference with the movement of any resident or migratory fish or wildlife species; impacts on a significant habitat area; substantial adverse impacts on a threatened or endangered species of animal or plant, or the habitat of such a species; or other significant adverse impacts to natural resources;"(§617.7(c)(1)(ii):

Early in the review process the Site was identified as potentially containing habitat for several State and Federally-listed threatened, endangered, or special concern species, including Indiana bat, bog turtle, timber rattlesnake, fairywand, and New England cottontail. To avoid potential impacts to Indiana bat (which have not been observed on-site), the Applicant will limit tree clearing on the Site to the period between October 1st through March 31st. While potential bog turtle habitat was not observed on the Site, the Applicant has coordinated with NYSDEC to provide appropriate measures to protect bog turtles including turtle exclusion fencing, and an Education and Encounter Plan. The closest timber rattlesnake den in the vicinity of the Site is located west of State Route 22 and this road provides a significant enough barrier that it would make it unlikely for timber rattlesnakes to be using the Site. However, the Applicant has prepared an Education and Encounter Plan for timber rattlesnake if needed during construction, in addition to that prepared for bog turtle. Based on surveys conducted by the Applicant and coordination with NYSDEC, it was determined that the Site does not contain fairywand or habitat for the New England cottontail.

Following several rounds of coordination and review with the Planning Board's consultants and NYSDEC, NYSDEC confirmed via email on July 15, 2022 that with inclusion of measures proposed by the Applicant as part of the Project (and memorialized in the Site Plan set), the Project will "avoid and/or minimize any direct impacts to individual bog turtles and avoid potential changes to the chemistry, quality, and quantity of surface and groundwater entering the adjacent wetland, and further that the Project does not require a Part 182 Incidental Take Permit for any state-listed species."

Although there is no federal nexus (i.e., funding, permitting) associated with the Project, the Applicant coordinated with the U.S. Fish and Wildlife Service (USFWS). In a letter dated December 27, 2022 USFWS indicated that based on the measures noted above, no take of Indiana bat or bog turtle would occur with the Project, and no further coordination with USFWS is required for the Project.

The Planning Board acknowledges receipt of an email from USFWS on February 6, 2023, after the close of the Public Hearing, questioning potential contamination from tires and debris on the Site. The Planning Board finds that the Site-specific information provided by the Applicant and reviewed by the Board and its Consultants, including soil testing, stormwater management features, and the debris removal plan approved by NYSDEC, adequately address the general concern raised in the email from USFWS.

The Project will not result in "the impairment of the environmental characteristics of a Critical Environmental Area as designated pursuant to subdivision §617.14(g)" (§617.7(c)(1)(iii)):

The Site is adjacent to the Great Swamp, which is identified as a Critical Environmental Area. The Friends of the Great Swamp had identified a potential concern with blasting creating fissures and vibrations in the marble bedrock of the Great Swamp. Although limited bedrock blasting is anticipated in the northern and northwest portions of the Site, the Town Engineer has reviewed a hydrogeologic and geotechnical memorandum provided by Terracon on behalf of the Applicant (dated April 7, 2022), indicating that construction (as well as operation) of the Project is not shown to have an adverse or measurable impact on the quantity or quality of water which enters the system for the adjacent Great Swamp. In addition, following several rounds of coordination and review with the Planning Board's consultants and NYSDEC, NYSDEC confirmed via email on July 15, 2022 that with inclusion of measures proposed by the Applicant as part of the Project (and memorialized in the Site Plan set), the Project will "avoid potential changes to the chemistry, quality, and quantity of surface and groundwater entering the adjacent wetlands." Further, no blasting shall occur between September 30th and April 1st annually.

The Project will not result in "the creation of a material conflict with a community's current plans or goals as officially approved or adopted;" (§617.7(c)(1)(iv)):

Pursuant to the Town's Zoning Code, the Project is permitted in the CO zone through approval of a special use permit and site plan from the Planning Board. The Project has been designed in accordance with the site plan provisions set forth in Section 145-65 of the Town Zoning Code and the Major Project Special Permit Criteria set forth in Section 145-63 of the Town Zoning Code.

By letter dated November 10, 2021, the Town Building Inspector determined that certain features of the Project that exceeded dimensional limitations in the Town Zoning Law were permitted because such features were required by the 2014 NYS Uniform Fire Prevention and Building Code.

The Project will not result in "the impairment of the character or quality of important historical, archaeological, architectural, or aesthetic resources or of existing community or neighborhood character;" (§617.7(c)(1)(v)):

The Site is located within an area designated as sensitive for archaeological sites. The Applicant initiated consultation on archaeology with the New York State Office of Parks, Recreation, and Historic Preservation (OPRHP) through OPRHP's online Cultural Resource Information System (CRIS). An initial response was received from OPRHP on April 12, 2021 recommending a Phase IA Archaeological Study be completed. The Applicant's consultant TRC prepared a Phase IA Archaeological Study and in a letter dated August 13, 2021 OPRHP concurred with the Phase IA report recommendation that no additional archaeological work is necessary.

The Applicant also initiated consultation with OPRHP through CRIS related to historic architectural and aesthetic resources. Three properties were identified by OPRHP as eligible for listing in the National Register within the survey boundary in November 2021. Following review of the site plans, the visual impact assessment prepared by the Applicant's consultant TRC, and public comments, OPHRP issued letters dated November 23, 2021 and May 31, 2022 stating that the project will not significantly detract from the character-defining features of the historic properties, and that the Project will have No Adverse Impact upon historic or cultural resources.

The Planning Board and its consultants also reviewed the visual impact assessment prepared by TRC and have concluded that the Project will not result in a significant adverse visual impact when viewed from publicly accessible locations, including views of motorists along Route 22 and Cricket Hill Road, and the view from the Dover High School athletic fields further north. In addition to existing vegetation along the Site's northern and western perimeters which will remain, landscaping plans included with the site plan set indicate that the Applicant intends to install over 250 new plantings, including evergreen trees to aid in visually screening the substation's low-lying equipment when viewed from Route 22 and Cricket Hill Road.

The Con Ed ROW to the north of the Site contains the existing Con Ed Line 398 345 kV transmission line infrastructure (known as Line 398). The Project's proposed interconnection with Line 398 is subject to a Certificate of Environmental Compatibility and Public Need issued by the New York State Public Service Commission pursuant to Article VII of New York State Public Service Law. Future upgrades within the ROW to Line 398 pursuant to Article VII were considered in TRC's visual impact assessment, specifically the replacement of an existing 85-foot lattice with a new transmission pole and the installation of one new 140-foot-tall transmission pole to the north of the Project Site.

Existing electric power generation, transmission and distribution uses are the predominant land uses surrounding the Site. These uses include the Con Ed 345 kV high transmission line corridor to the north, and the Cricket Valley Energy Center to the west. As demonstrated through the photo simulations of the Project provided with the visual impact assessment, the Project's taller equipment including lightning masts and the on/off-site transmission line towers proposed to connect the substation to Line 398 to the north (across Cricket Hill Road) are not considered to be out of character with the highly visible utility uses immediately adjacent to the Site.

The Project will not utilize lighting during nighttime hours under normal operations. Lighting at night will only occur during emergency maintenance visits for safety and security purposes, which are infrequent. All proposed lighting will comply with applicable town, state, and federal standards.

The Board and its consultants have reviewed an Environmental Justice Response Memorandum prepared by TRC and dated November 4, 2022. The Board has evaluated whether the Project would have impacts on environmental justice communities and has determined that the Project 1) is not within a "potential environmental justice area" ("PEJA"); and 2) even if it were, the Project will not result in any significant adverse impacts on the PEJA.

The US Environmental Protection Agency produces Environmental Justice Indexes. In Dover, there are three indexes under the 80th percentile – lead paint, underground storage tanks and wastewater discharge. There is no evidence that the existing Site contains contamination or pollution that will be released during construction, the Site does not have any known or suspected underground tanks, and there are no structures with lead paint that will be demolished or otherwise impacted by the Project.

The Project is a substation which does not generate electricity or emissions, and does not use water, produce wastewater or cause traffic. There are no expected environmental impacts that would burden the community.

In correspondence with the Planning Board's consultant dated December 16, 2022, NYSDEC indicated that based on Environmental Protection Agency's (EPA) mapping tool EJScreen and 2016-2020 American Community Survey data from the U.S. Census Bureau, the block group containing the Site does not meet or exceed NYSDEC's thresholds for a PEJA.

The Applicant has provided evidence of its community engagement efforts in addition to 4 public hearings held by the Planning Board and the opportunity to submit written comments for consideration over a 5-month period.

The Project will not result in "a major change in the use of either the quantity or type of energy;" (§617.7(c)(1)(vi)):

The Project is an electrical substation, the purpose of which is to help control the flow of energy on the existing transmission system between the New York and New England regional power networks. The Project will interconnect with the existing transmission system via new overhead 345 kV lines tying into the Con Ed 398 Line, which is an existing 345 kV electric transmission line located immediately north of the Project Site and Cricket Hill Road (aka County Route 26).

Electricity demand for the Site (not related to the control of transmission) is estimated by the Applicant to be less than 350 MW hours annually. The Project will connect to the existing New York State Electric and Gas (NYSEG) grid in the area of the Site.

The Project will not result in "the creation of a hazard to human health;" (§617.7(c)(1)(vii)):

The Project is a substation that will not generate emissions nor contribute to or increase any cumulative pollution burden in the area. Measures to be provided as part of the Project's construction will ensure that no significant adverse impacts related to hazardous materials would result from site preparation and construction activities. These measures are described below.

With regard to potential hazards to human health during operation of the Project, the Applicant met with the JH Ketcham Hose Company (Town of Dover Fire Department) on June 9, 2022, where the site plan and project details were reviewed. The Fire Department submitted a letter to the Planning Board dated July 19, 2022, outlining their review and comments on the Project. The Applicant has committed to comply with all of the Fire Department's requests, including the understanding that an authorized representative of NY Transco shall be present when the Fire Department enters the fenced substation area.

The FEAF and review of NYSDEC online resources indicate there are no reported spills at the Site and no portion of the site is listed on the NYSDEC Spills Incidents database or Environmental Site Remediation database. The Site has also not been the subject of corrective activities.

Due to the former use of the Site as a junkyard, the Applicant conducted soil and groundwater sampling as part of due diligence in acquiring the Site. These investigations were performed at the Site in accordance with New York State Department of Environmental Conservation (NYSDEC) DER-10 Technical Guidance for Site Investigation and Remediation (DER-10), and standard industry practices.

Investigations completed by TRC and Terracon in 2021 and 2022 consisted of ground penetrating radar (GPR) surveys and collection of surface soil, subsurface soil, and groundwater samples from test pits, soil borings, and monitoring wells. As a result of the GPR investigation, no subsurface anomalies indicative of an underground storage tank (UST), related piping, or tank graves were identified. Soil samples collected during the investigations did not identify volatile organic compounds (VOCs) or semivolatile organic compounds (SVOCs) at concentrations above the NYSDEC Part 375 Commercial or Industrial Use Soil Cleanup Objectives (Commercial/Industrial SCOs). The Commercial/Industrial SCOs are applicable to the classification of the Site as well as the proposed use. Further, none of the soil samples taken had detectable levels of polychlorinated biphenyls (PCBs), pesticides, herbicides or total Petroleum Hydrocarbons Gasoline Range Organics (TPH-GRO). Soil samples analyzed for metals, SVOCs and total Petroleum Hydrocarbons Diesel Range Organics (TPHDRO) did not exceed the applicable criteria (Commercial/Industrial Use SCO). Soil samples analyzed for lead by toxicity leaching characteristic procedure (TCLP) also did not exceed the corresponding regulatory limit. Further investigation or remediation for lead is not required under NYSDEC standards or warranted for use of the Site for the Project. The soil samples collected did not exhibit characteristics of corrosivity, reactivity or ignitability. The groundwater samples had no detectable amounts of VOCs.

Based on the soil and groundwater sampling information provided to the Planning Board as part of the SEQR record, it can be reasonably concluded that the Site is not contaminated currently, and that construction of the Project in accordance with the measures proposed to address construction-related erosion and sedimentation (required through Town Code Chapter 65) would serve to preclude any significant impacts related to any hazardous materials leaving the Site during construction. Adherence to Chapter 65 requirements involves routine inspections by the Town Engineer and Building Inspector. As is the case with construction projects throughout the Town, NYSDEC responds to reports of hazardous material releases through the State's Spill Response Program. In the event unexpected discoveries with evidence of contamination are unearthed during construction of the Project, the Applicant must notify the Town and NYSDEC. NYSDEC will then open a spill case, and the condition will be evaluated and remediated accordingly.

As discussed above, in correspondence with the Planning Board's consultant dated December 16, 2022, NYSDEC indicated that based on Environmental Protection Agency's (EPA) mapping tool EJScreen and 2016-2020 American Community Survey data from the U.S. Census Bureau, the block group containing the Site does not meet or exceed NYSDEC's thresholds for a potential environmental justice area (PEJA).

The Project will not result in "a substantial change in the use, or intensity of use, of land including agricultural, open space or recreational resources, or in its capacity to support existing uses;" (§617.7(c)(1)(viii)):

The Site is not currently an agricultural, open space, or recreational resource. The Site is located in a commercial zoning district adjacent to other public utility infrastructure including a power plant and high transmission lines and located on a State Highway.

The Project will not result in "the encouraging or attracting of a large number of people to a place or places for more than a few days, compared to the number of people who would come to such place absent the action;" (§617.7(c)(1)(ix)).

The Project will not result in "the creation of a material demand for other actions that would result in one of the above consequences;" (§617.7(c)(1)(x)).

The Project will not result in "changes in two or more elements of the environment, no one of which has a significant impact on the environment, but when considered together result in a substantial adverse impact on the environment; or (§617.7(c)(1)(xi)).

The Project will not result in "two or more related actions undertaken, funded, or approved by an agency, none of which has or would have a significant impact on the environment, but when considered cumulatively would meet one or more of the criteria listed in §617.7(c)(1) (§617.7(c)(1)(xii)).

For Further Information:

Contact Person:	Ryan Courtien
Address:	Town of Dover Planning Board 126 East Duncan Hill Road Dover Plains, NY 12522
Telephone Number:	(845) 832-6111